

Zamp HR (And Its Entities)

Employee Acknowledgment Form

Employee Name: _____ ("Employee")

Subscriber / Company Name: _____ ("Subscriber")

1. **Professional Employer Organization, Licensing Act Recitals.**

Professional Employer Organization Contact Information:
Zamp HR (And Its Entities) ("Zamp HR" or the "Company")
Craig Allred, President

(801) 377-1190

2. **Employee Acknowledgement.** I, the employee, understand that my employer (the "Subscriber") has entered into a written agreement with Zamp HR whereby Zamp HR will provide professional employer services to Subscriber and employees working at Subscriber's location (the "Subscriber Agreement"). I understand that this Acknowledgement Form serves as notice to me that pursuant to the Subscriber Agreement, I will become a co-employee of Zamp HR and the Subscriber. Pursuant to the Subscriber Agreement, Subscriber will continue to direct and control my day-to-day work activities, and will continue to be responsible for my terms and conditions of employment, including, but not limited to, my wages and/or salary. I will continue to receive the same wages and/or salary as previously agreed upon between the Subscriber and me. I accept the conditions of the co-employment relationship between Zamp HR, Subscriber and me. I also confirm that I have received a copy of the Zamp HR Employee Handbook, and that I agree to abide by its terms and conditions. I further agree and understand that in the event Subscriber fails to provide funds to Zamp HR as required under the Subscriber Agreement and I fail to receive my wages as previously agreed between Subscriber and me, I agree that my recourse for such wages or other compensation alleged to be due is against the Subscriber, and that I waive any and all claims to wages, salary, or other compensation ("Compensation") from Zamp HR. I further agree that Zamp HR does not pay, and has no obligation to pay, severance pay, accrued PTO, or other payments other than the amounts described above.

3. **At Will Employment.** Except with respect to paragraph 6 below, I understand that I am an "employee at will". I have entered into this employment relationship with the Company/Subscriber, voluntarily and for no specified length of employment. This means that the Company and/or Subscriber may discharge me at any time for any reason, with or without notice, and that I may terminate my employment at any time for any reason, with or without notice. Any oral or written representations to the contrary, by either the Company or the Subscriber, are invalid and may not be relied upon by me. In the event my employment is terminated by Subscriber or Zamp HR, I agree to contact Zamp HR within 48 hours of such termination and request from Zamp HR an opportunity for employment as another Subscriber Client of Zamp HR. I understand and agree that my failure to provide such notice to Zamp HR and to seek other employment through Zamp HR may adversely affect my ability to collect unemployment benefits.

4. **Confidential and Proprietary Information.** I, the employee, will preserve the secrecy of all trade secrets and other proprietary and confidential information belonging to the Subscriber or Zamp HR during employment and after termination of employment, and I will not take or misuse any such confidential information at any time. I agree on the request of the either Subscriber or Zamp HR, or upon termination of employment, I will promptly return to the appropriate party all its property, specifically including all documents, disks, or other computer media or other materials in my possession or under my control that contain ideas, processes, concepts or other trade secrets or proprietary and confidential information belonging to the either party.

5. **Workers Compensation, Medical Treatment, Modified Duty, Designated Provider Policy.** I, the employee, understand in accordance with state law, a Medical Provider has been designated for purposes of Workers Compensation Insurance, and that my Workers Compensation benefits may be reduced if I fail to be seen by the Designated Medical Provider for treatment of any work related injury. I also understand that work-related injuries must be reported to the Subscriber immediately following the injury and if I do not report the injury within a reasonable time frame, Workers Compensation benefits may be reduced.

6. **Position and Duties.** I further understand that I shall be subject to the Subscriber's direct supervision and shall perform the tasks assigned by the Subscriber, subject to the Subscriber's practices, policies and procedures. Subscriber may modify my position and duties at Subscriber's sole discretion, with or without notice to me. I further agree to comply with the Company's established instructions, practices and procedures, when and if Company has provided or assisted in providing such instructions, practices and procedures. I shall remain the employee of Subscriber for purposes of determining whether any of Subscriber's employees are entitled to or eligible for incentive stock options.

7. **Place of Performance.** I, the employee, shall be based at the Subscriber's address.

8. **Compensation, Benefits and Related Matters.**

a. **Compensation.** The Company shall issue pay checks to me in accordance with the agreement as to wages or salary between the Subscriber and me. The amount of salary/wages may be unilaterally changed from time to time at the discretion of Subscriber and/or Company.

b. **Benefits.** If eligible, I shall be entitled to the benefits that I applied for on the Benefits Enrollment Form, which, by my signature on this form, I acknowledge I have received.

9. **Mediation and Arbitration.** I agree to abide by the Mutual Arbitration Agreement between Zamp HR, Subscriber and me that is included with the enrollment documents received today.

10. **Drug-Free Workplace Policy.** I understand that Zamp HR and the Subscriber maintain a drug-free workplace, and I agree to the terms and conditions of the Drug and Alcohol Policy of Zamp HR and/or Subscriber. I understand and acknowledge that I can be required to undergo a drug test as a condition of employment, following a work-related accident, and/or upon reasonable suspicion of impairment. Failure to comply with a drug testing request or a positive test result will result in discipline up to and including termination.

11. **Harassment, Sexual Harassment, Work Place Violence and Reporting Policy.** I understand that harassment in any form and violence in the workplace is a direct violation of the Company's policy and that Zamp HR and/or subscriber will investigate all reported incidents of harassment, sexual harassment and workplace violence. I understand that substantiated incidents of this type will lead to disciplinary action up to and including immediate termination. I understand that if I believe that I have been the subject of harassment or sexual harassment, or have been harmed by violence or threatened with violence, or have witnessed anyone else connected with my employment, experience or commit such conduct, I must promptly notify my immediate supervisor, a member of Management of the Subscriber or the VP of Human Resources for Zamp HR at 1-888-810-8187. In such an event, Zamp HR and the Subscriber will make every reasonable effort to preserve the confidentiality of all persons involved.

12. **Release of Information.** I hereby consent to the release of my name, city, phone number, job skills, and other applicable information to partnering staffing agencies, and other potential employers, to be used for the purpose of unemployment management. I further consent to the disclosure by the partnering staffing agencies of all pertinent information relevant to my employment, and details pertaining to compensation to enable a quick return to the work place.

13. **Release of Information for References.** I understand that my employer will provide references to potential employers upon my written request only. I understand that my employer will release information concerning employment when presented with a written release. I understand that with this written release that I release Zamp HR and the subscriber from liability and hold them harmless concerning any information they may give about my job performance to potential employers, so long as they provide the information in good faith.

14. **Acknowledgment.** I acknowledge that I have received, read and understand this Employee Agreement Form, and that I understand that I am an at-will employee and that as such I may quit employment at any time, for any reason, with or without notice, just as my employment may be terminated by Subscriber or Company at any time, for any reason, with or without notice.

ZAMP HR (AND ITS ENTITIES):

By: _____
(Print Name)

Name: _____
(Signature)

Title: _____

Date: _____

EMPLOYEE:

By: _____
(Print Name)

Name: _____
(Signature)

Title: _____

Date: _____